

Senior Air Hostess Samina Saleem Qureshi **Versus** Pakistan International Airlines and others

23.12.2021 Mr. Nabeel Javed Kahloon, Advocate for the petitioner.
Muhammad Aoun Jamil Awan, Advocate for
respondents.

2. Facts pertinent for the decision of this petition are that in response to an advertisement in newspaper the petitioner statedly applied for the post of Airhostess, submitted all required documents for the post and was, thereafter, appointed as Airhostess in PIA on 10.1.1996. For verification of B.A. Degree submitted by the petitioner, the matter was referred to Bahauddin Zakariyah University, Multan which reported the document to be fake and bogus; in result a show cause notice was issued to the petitioner. Reply submitted by the petitioner was not deemed to be satisfactory and, ultimately, she was dismissed from service on 27.12.2018 due to furnishing of a fake and bogus degree. Petitioner instituted a suit to challenge the order of termination/dismissal from service wherein the learned Civil Judge rejected the plaint on the ground that the suit was barred by law, the remedy

available to the petitioner was a suit for damages and that the suit for declaration instituted by her was not maintainable. This was vide judgment/order dated 22.3.2021. Appeal preferred by the petitioner thereagainst was also dismissed by the learned Addl. District Judge, Lahore vide order dated 12.11.2021. Both these judgments/orders are subject-matter of instant revision petition.

3. Arguments heard. Record perused.

4. Scrutiny of the documents appended with this petition reveals that the petitioner was appointed as Airhostess in Pakistan International Airlines Corporation. The documents submitted by her included B.A. Degree which on verification from the concerned university was found to be fake and bogus. In consequence thereof she was served with a show cause notice, her reply was found to be unsatisfactory and she was removed from service. Main stance of the petitioner was that there was no need to file B.A. Degree and that the qualification for the appointment of Airhostess was only Intermediate. She had provided the Intermediate Certificate, which was not found to be fake and, therefore, she could not be dismissed on account of irrelevant document that was not a condition precedent for the job appointment. Perusal of the reply to show cause notice and also the contents of pleadings, shows that the petitioner did not claim that her decree was genuine but only maintained that there was no need to file B.A. Degree as it was not the required education for the appointment. Reference was also made to the Constitutional petition earlier filed by the petitioner wherein she sought a direction for the constitution of a fresh Review Committee to consider her B.A. Degree in the light of the Pakistan

International Airlines Corporation Limited (Conversion) Act, 2016 which petition was dismissed in limine as not maintainable with the observation that the petitioner claimed to have filed a civil suit for declaration, therefore, during pendency of the civil suit indulgence in Constitutional jurisdiction was not approved. Obviously, in the said Order no comment was required to be made as to the maintainability of the suit in its present form and only the fact noted was that the petitioner having chosen a remedy before the civil court, as a matter of rule, Constitutional petition could not be entertained. Even otherwise the petitioner was only seeking reconstitution of the Review Board to examine her educational documents in the Constitutional petition. Being so, no benefit could be drawn from the fact that the Constitutional petition was not entertained as maintainable.

5. The pivotal question that requires to be answered in this case is as to whether the suit for declaration under section 42 of the Specific Relief Act, 1877 to challenge the order of termination/dismissal from service of an employee in a statutory corporation having no statutory rules, was maintainable or not. It is a settled rule that in the absence of any statutory rules the employee cannot claim the rights and privileges as are available to civil servants. Instead the rule of master and servant would attract which is to the effect that unwilling employer cannot be compelled to accept the services of an employee who had been removed from service and if the employee feels that the order was not just or fair or suffered from any mala fide, the remedy will be to sue for damages and not for declaration for subsistence of service as no declaration could be issued as to the subsistence of a contract that

by its own terms and conditions was terminable at the option of the employer.

6. In the present instance the removal of the petitioner from service was on account of furnishing a fake document and in the event she felt that the decision of removal from service was not bona fide or was for extraneous reasons, the remedy did not lie in seeking declaration rather the petitioner would be entitled to seek damages which she could be granted if she proved that the termination or removal was not genuine or bona fide or amounted to unfair treatment. Reference in this regard may be made to the case of “PIA Corporation v. Syed Suleman Alam Rizvi and others” (2015 SCMR 1545) in which it was observed to the effect that no Constitutional petition lies in matters pertaining to terms and conditions of service of employees of a corporation where such terms and conditions were not governed by statutory rules and that admitted position was that the employees of PIA Corporation were not governed by any statutory rules and, therefore, as per settled law the relationship between the corporation and its employees was that of master and servant. Reference can also be made Abdul Wahab and others v. HBL and others” (2013 SCMR 1383) in which it was ruled to the effect that where a service grievance is agitated by a person/employee who was not governed by statutory rules of service, under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973, such petition will not be maintainable. In case of “Pakistan Refugee and Rehabilitation Finance Corporation, Lahore and another v. Syed Karamat Hussain” [PLD 1966 (W.P.) Lahore 442] it was observed to the effect that in cases of illegal termination of service of employees of a

corporation they will be regulated by rule of master and servant and remedy would lie in a suit for damages for wrongful dismissal and not for declaration and injunction under section 42 of the Specific Relief Act, 1977.

7. In the instant case too the services of the petitioner were regulated by the rules which were not statutory in nature and, as such, the remedy of petitioner was not in the filing of suit for declaration as to the wrongful dismissal and for subsistence of service. Rather the remedy was a civil suit for damages. The courts below, therefore, correctly rejected the plaint and also dismissed the appeal as the petitioner had not claimed any relief for damages and was simply challenging the action of her dismissal and asking for its annulment in the suit which was not maintainable in law.

8. For the reasons supra the impugned judgments/orders of courts below do not suffer from any error of law so as to call for any interference. The revision petition being without substance is **dismissed**.

(RASAAL HASAN SYED)
JUDGE

Approved for reporting.

JUDGE